

THE CORPORATION OF THE TOWN OF SMITHS FALLS

BY-LAW NO. 10278-2021

*BY-LAW TO AMEND BY-LAW 10075-2019 BEING A BY-LAW TO REGULATE THE
OPERATION OF ALL-TERRAIN VEHICLES ON MUNICIPAL HIGHWAYS WITHIN THE
TOWN OF SMITHS FALLS*

WHEREAS Section 8 of the Municipal Act, SO 2001, provides that a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under this or any other Act;

AND WHEREAS Section 9 of the Municipal Act, SO 2001, provides that Section 8 shall be interpreted broadly so as to confer broad authority on municipalities to enable them to govern their affairs as they consider appropriate and to enhance their ability to respond to municipal issues;

AND WHEREAS Council of the Corporation of the Town of Smiths Falls passed By-law 10075-2019 being a By-law to Regulate the Operation of All-Terrain Vehicles on Municipal Highways within the Town of Smiths Falls

AND WHEREAS Council of the Corporation of the Town of Smiths Falls now deem it appropriate to amend Schedule A of By-law 10075-2019 to permit All-Terrain Vehicles on all highways within the Town of Smiths Falls with the exception of locations as provided on Schedule A (attached).

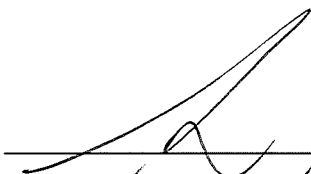
NOW THEREFORE the Council of the Corporation of the Town of Smiths Falls enacts as follows:

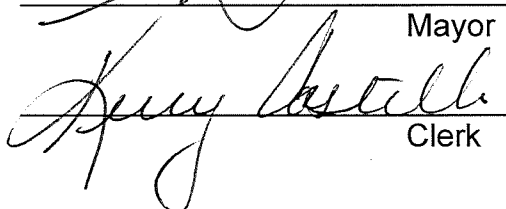
1. THAT By-law 10075-2019 be amended to remove "Schedule A" and replace with the "Schedule A" attached hereto and forming part of this By-law.
2. THAT All Terrain Vehicles be now permitted on all highways within the Town of Smiths Falls with the exception of locations as listed on Schedule A (attached hereto).
3. THAT By-law 10075-2019 be amended to include the following provision:

IV. General
4. "to trail and to home" access be permitted on all roadways (excluding those listed on Schedule A) ; providing access to the closest access point of the trail.
4. THAT all other provisions of By-law 10075-2019 remain in force and effect.

Read a first and second time this 22nd day of November 2021

Read a third time and passed this 22nd day of November, 2021



Mayor


Clerk

CORPORATION OF THE TOWN OF SMITHS FALLS
SCHEDULE "A" to BY-LAW 10075-2019 (as amended via 10278-2021)

All-Terrain Vehicles shall be authorized on all highways within the Town of Smiths Falls with the exception of the following locations:

Street Name	From	To
Cornelia Street West	Elmsley Street North	Westerly Town Limits
Cornelia Street West	Elmsley Street North	Beckwith Street North
Cornelia Street East	Beckwith Street North	Easterly Town Limits
Union Street	Cornelia Street East	Northerly Town Limits
Elmsley Street	Cornelia Street West Intersection	Queen Street
Queen Street	Elmsley Street South	South Easterly Town Limit
Brockville Street	Brockville/Beckwith./Jasper/Lombard Intersection	Southerly Town Limit
Beckwith Street	Brockville/Beckwith/Jasper/Lombard Intersection	Elmsley Street North
Lombard Street	Brockville/Beckwith/Jasper/Lombard Intersection	South Westerly Town Limit
Jasper Avenue	Brockville/Beckwith/Jasper/Lombard Intersection	South Easterly Town Limit

Note - Sponsoring ATV Club for all listed segments is Rideau Lakes ATV Club